

IN THE CIRCUIT COURT OF THE EIGHTH JUDICIAL CIRCUIT IN AND FOR ALACHUA  
COUNTY, FLORIDA

CASE NUMBER: 01-2026-CA-001794 Circuit Civil Division W

CHRISTOPHER A. HANSON, individually and as attorney for himself and as next friend and  
attorney for his two minor children,

Petitioners,

v.

UNIVERSITY OF FLORIDA BOARD OF TRUSTEES, and CUSTODIAN OF PUBLIC  
RECORDS, UNIVERSITY OF FLORIDA,

Respondents.

\_\_\_\_\_ /

**PETITIONER'S MOTION FOR DETERMINATION ON THE SHOW-CAUSE  
RECORD, TO COMPEL IDENTIFICATION AND IN CAMERA INSPECTION OF  
WITHHELD RECORDS, AND TO DESIGNATE THE SEPTEMBER 2, 2026 HEARING**

Petitioner Christopher A. Hanson, self-represented, moves for a determination on the existing  
show-cause record, to compel production of the records the University located and withheld or,  
in the alternative, their identification and in camera inspection, for a ruling on his pending cross-  
motion, and for an order designating the September 2, 2026 hearing, and states:

**A note on citations.** Petitioner's exhibits are pre-marked by letter, A through R, and are listed on  
Petitioner's Exhibit List served and filed August 31, 2026. "Ex. \_\_ at \_\_" is a page within that  
exhibit.

Two of the sources cited here carry their own pagination, and this motion uses it rather than renumbering the University's documents.

"Emails\_1" and "Emails\_2" are the University's own file names for two of the four attachments to its July 17, 2026 production in response to Request No. W018964-060526. Pages of each are cited by that file's own internal pagination, exactly as the University produced it. The complete production, cover response and all four attachments together, is Exhibit K, filed with this Court on August 28, 2026 as Filing 255904665, in which each attachment sits behind a divider naming it. The key pages are compiled at Exhibit P, and every citation to Emails\_1 or Emails\_2 also gives the Exhibit P page where that same page is reproduced.

Pages of Exhibit D to Respondents' Motion for Protective Order are cited as "Ex. H, orig. p. \_\_," giving the page its original number in that exhibit. "App. \_\_" is a page of Petitioner's Notice of Filing Appendix A-G to the Verified Petition.

## **Summary**

1. The Court entered an Order to Show Cause requiring Respondents to "show cause in writing why a peremptory writ should not issue," addressing "all issues contained in the petition." Order to Show Cause ¶ 2 (June 12, 2026) (Ex. E). On that order the burden of justifying nondisclosure is Respondents' own. *Chandler v. City of Greenacres*, 140 So. 3d 1080, 1083 (Fla. 4th DCA 2014) (quoted at Response p. 5). What follows is a summary of Respondents' handling of the public records request, and of the failures that require the Court's intervention, drawn from Respondents' own words and documents.

2. **The initial response: 53 pages and a closed file.** On May 4, 2026, the University produced 53 pages, all of them Petitioner's own correspondence with University faculty, and

declared the same afternoon: "This completes the public records request." On May 5 it stated in writing that "[n]o exempt information was withheld or redacted from the records responsive to your request, and consequently, no statutory exemptions were cited in UF's response." Response p. 4; Ex. D, App. 76. No further production followed. The Petition was filed June 4, 2026, followed by the Order to Show Cause entered by the Court on June 12, 2026.

3.     **The July 7, 2026 Response to the Order to Show Cause: no exemptions, everything produced.** Respondents answered the Order to Show Cause with a response and one affidavit, Filing 251907242 (Ex. F), quoting the May 5 statement to this Court and adding that "[a]ll of the records responsive to Petitioner's request were produced in their entirety." Response p. 9. Both statements describe the 53-page May 4 production. The affidavit asserts no exemption for any page.

4.     **Twenty-three days later: 479 pages filed on the public docket, and three exemptions in a footnote.** On July 30, 2026, Respondents filed 479 gathered pages on the public docket as Exhibit D to their Motion for Protective Order, Filing 253616687 (Ex. G), and asserted three statutory exemptions for the first time, in a single footnote. Of those 479 pages, 53 are the May 4 production, every page of it Petitioner's own correspondence returned to him. The remaining 426 pages had never been produced to Petitioner. Respondents identified no record to which any exemption applies.

5.     Respondents have never explained the change from the position their Response and its affidavit presented to this Court to filing hundreds of never-produced pages under newly asserted exemptions. They have identified no record that would let the Court reconcile the two.

6.     Respondents did not respond to depositions, requests for admission, or a request to produce. Records Custodian Hines was noticed on July 24, 2026, on the stated basis that he is

a managing agent of Respondent Board of Trustees, and Petitioner asked Respondents' counsel in writing the same day to state whether the University would produce him on that notice without a subpoena. Respondents did not answer. Respondents moved for a protective order on July 30, 2026, did not set that motion for hearing before the deposition date, and obtained no order before August 3, 2026; the motion was first noticed for hearing on August 14, 2026. Professor Bambauer and Mr. Hines each failed to appear on August 3, 2026, neither was released from appearance, no one appeared to state an objection on the record, and the court reporter issued a certificate of non-appearance for each. Ex. L, tabs A and B. Respondents' responses to the written discovery served July 13 (Ex. J) fell due on August 12, 2026, with no protective order then entered; none were served. The Court heard Respondents' motions and Petitioner's cross-motion on August 24 and announced rulings orally; the transcript, ordered that day, has not been delivered, and no written order has issued.

7. The University's own file on its processing of the initial records request raises unanswered questions about hundreds of pages of located records that, despite every request and every discovery instrument served in these proceedings, remain withheld and unidentified within the public university.

8. The records that remain unidentified were located, so far as the University's own file discloses their source, in two University mailboxes: that of the Director of the University's own Brechner Freedom of Information Project, and that of a University law professor. Emails\_1 p. 23 (Ex. P at 3). The affidavit Respondents filed names no mailbox at all. Hines Aff. ¶¶ 5-6. It does not disclose that a third mailbox was searched on May 7, 2026, Emails\_1 p. 280 (Ex. P at 15), and it does not disclose the search of a mobile messaging application reflected in Respondents' own exhibit, Ex. H, orig. p. 302.

9. The University located records in five batches, each recorded in its own processing file (the key pages are compiled and pre-marked as Petitioner's Exhibit P):

a. **March 30, 2026: 330 pages.** "This search concluded with 103 message(s), which resulted in 330 page(s)." W018964 production, emails\_1 p. 23 (Ex. P at 3);

b. **An additional 10 pages**, recorded in a sentence that stops mid-line, with no object: "In addition to the 10 pages from," in a passage that gives 340 as a page-count figure. Emails\_1 p. 36 (Ex. P at 5);

c. **April 24, 2026: 621 pages.** "the 621 pages received from UFIT on 04/24/26." Emails\_2 p. 275 (Ex. P at 11);

d. **May 4, 2026: 109 pages**, after UFIT reported its search tool "stalled before completing the search of Professor Bambauer's mailbox," plus "17 other messages that matched the criteria and should have been included previously." Emails\_1 p. 119 (Ex. P at 6);

e. **May 7, 2026: an 88-page extraction** of the hits on six of Petitioner's own case numbers and keywords. Emails\_2 pp. 252, 275 (Ex. P at 10-11).

10. On May 7, 2026 at 9:16 a.m., Associate General Counsel Amy Quillen directed the University's eDiscovery unit to "pull out the results" for six of Petitioner's own search terms: two of his case numbers, the 13th Circuit, two judges named in his cases, and "surveillance video." Emails\_2 p. 252 (Ex. P at 10).

11. Fifty-four minutes later the University delivered those results to Ms. Quillen as a separate 88-page file, ISS-444193-W018463-032626-16-88-opt-SpecificKeywords.pdf. Emails\_2 pp. 252, 275 (Ex. P at 10-11).

12. None of it was identified to Petitioner or to this Court. Neither the Response nor the affidavit nor the July 30 motion mentions the extraction or the file it produced. Response pp. 3-10; Hines Aff. ¶¶ 5-8; Prot. Order Mot. ¶¶ 10-15, 24.

13. Petitioner asks the Court to: (a) determine what the return failed to carry as a matter of law on Respondents' own filings; (b) order production of the withheld records on every ground the return did not carry or, in the alternative, require Respondents to identify each withheld record and the ground for withholding it and to tender those records for in camera inspection; and (c) state the issues of material fact that remain for hearing.

14. Every genuinely disputed fact goes to the hearing, not the papers. On August 27, 2026, a Florida circuit court ordered this same sequence in Petitioner's parallel Chapter 119 case. Ex. N.

15. Proceeding to a final evidentiary hearing while the Order to Show Cause remains unadjudicated inverts the sequence Florida law commands and denies Petitioner the process due. Art. I, § 9, Fla. Const. The sufficiency of the return is determined first, *Holcomb v. Dep't of Corrections*, 609 So. 2d 751, 753 (Fla. 1st DCA 1992); *Bal Harbour Village v. State ex rel. Giblin*, 299 So. 2d 611, 615 (Fla. 3d DCA 1974); disputed issues a sufficient return raises are then resolved on evidence, *Radford v. Brock*, 914 So. 2d 1066, 1068 (Fla. 2d DCA 2005); and an order entered without the statutorily required hearing is premature, *Kline v. University of Florida*, 200 So. 3d 271, 272 (Fla. 1st DCA 2016).

## **I. The Relief Requested**

16. This motion asks for a remedy on what the show-cause record and Chapter 119 already require: an order compelling production of the withheld records, or in the alternative an

order compelling their identification and in camera tender, a ruling on the pending cross-motion, and an order stating what the September 2 hearing is for.

17. The Response did not carry the agency's burden of justifying nondisclosure. Petitioner asks the Court to award a peremptory writ conformed to the grounds the record supports and to order production accordingly. A mandate "must be enforced in its entirety or else not enforced at all," *Merchants' Broom Co. v. Butler*, 70 Fla. 397, 70 So. 383 (1915), and the cure is conformity: where an alternative writ justifies "a part, but not all" of what it commands, the court amends it to "conform to the mandate of the peremptory writ that it has found proper to be awarded." *City of Bradenton v. State ex rel. Perry*, 118 Fla. 838, 842-43, 160 So. 506 (1935). Chapter 119 works the same way, reaching "the remainder" of a redacted record and "the public record or part thereof in question." § 119.07(1)(d), (1)(g), Fla. Stat. The writ should fix a compliance period and end, with no retained jurisdiction. *See Agency for Health Care Admin. v. Zuckerman Spaeder, LLP*, 221 So. 3d 1260, 1264 & n.5 (Fla. 1st DCA 2017).

18. Respondents have never stated how many pages they located, what they located, or how many they withheld. Not in the Response, not in the affidavit, not in the Motion for Protective Order. The right of access is a constitutional right and is self-executing, Art. I, § 24(a), (c), Fla. Const.; the agency bears the burden of proving any exemption it claims; and sections 119.07(1)(e) and (1)(f) require it to state, record by record, what it withholds and why. A right of access is illusory if an agency may decline to say what it holds and how much of it is being kept back. On that practice an institution decides for itself what the public may learn about its own conduct, which is the condition Article I, section 24 exists to prevent.

19. Production is the remedy Chapter 119 provides when a return fails to justify withholding, and it is what Petitioner asks for first. Identification and in camera tender are sought

in the alternative, and as to any record the Court is not prepared to order produced outright. This request is confined to questions of law resolvable on Respondents' own filings. Where the Court finds a question genuinely contested, Petitioner asks the Court to state the issues of material fact that remain, and to take up the order on the protective-order motion as appropriate, so the evidentiary hearing can ultimately proceed on the merits.

## **II. The Framework: the Alternative Writ, the Two Burdens, and the Mandatory Hearing**

20. "Every person has the right to inspect or copy any public record made or received in connection with the official business of any public body, officer, or employee of the state, or persons acting on their behalf, except with respect to records exempted pursuant to this section or specifically made confidential by this Constitution." Art. I, § 24(a), Fla. Const. The provision "shall be self-executing." Art. I, § 24(c). Chapter 119 implements that right.

21. There is a presumption in favor of public access. Records withheld from public view are the exception, and the University of Florida has no right to withhold records from this process without identifying them.

22. Petitioner's verified petition stated a *prima facie* case for relief, and this Court found it "facially sufficient" and ordered a return.

23. The presumption of public access controls unless Respondents prove an applicable exemption. Identification of the documents is a condition precedent to proving any exemption and, more importantly, it is the base requirement of the constitutional right of access itself. "[T]he governmental agency claiming the benefit of these exemptions has the burden of proving its entitlement to them." *Christy v. Palm Beach Cnty. Sheriff's Office*, 698 So. 2d 1365, 1367 (Fla. 4th DCA 1997). The requester's burden stays where it is; the exemption burden sits with the agency.



24. This Court found the Petition "facially sufficient" and ordered Respondents to "show cause in writing why a peremptory writ should not issue," addressing "all issues contained in the petition." Order to Show Cause ¶ 2 (June 12, 2026). The order "becomes in all respects the complaint," and "[i]f the respondent does not meet this burden in the return, then no trial is necessary and the court can decide the issues based upon the sufficiency of the legal issues raised." *Holcomb v. Dep't of Corrections*, 609 So. 2d 751, 753 (Fla. 1st DCA 1992); *accord Chandler v. City of Greenacres*, 140 So. 3d 1080, 1083 (Fla. 4th DCA 2014) (Response p. 5).

25. *Holcomb* states the pleading consequence in the same passage: "All facts alleged in the order to show cause, which generally incorporates by reference the original petition, that are not specifically denied are admitted to be true." 609 So. 2d at 753.

26. Evaluating the sufficiency of the return is the court's own function. Where a relator moved for the peremptory writ "the return of the Respondents notwithstanding," the Third District affirmed the writ, holding that the law "places a specific burden upon the municipality to come forward with exact facts" and that "[t]he trial judge correctly determined that the return was insufficient to raise issues of fact." *Bal Harbour Village v. State ex rel. Giblin*, 299 So. 2d 611, 613, 615 (Fla. 3d DCA 1974).

27. Respondents' July 7, 2026 response and its affidavit are the record on which Respondents must carry that burden. They have served no discovery responses to the interrogatories, requests for admission, and request to produce served July 13, 2026 (Ex. J), and produced no witness for deposition (Ex. L, tabs A and B).

28. **The statutory hearing exists for the requester's protection, and it cannot be converted into a shortcut past the process that precedes it.** Section 119.11(1) commands that "the court shall set an immediate hearing, giving the case priority over other pending cases." The

trial court "has a ministerial duty to set the hearing." *Matos v. Office of the State Attorney for the Seventeenth Judicial Circuit*, 80 So. 3d 1149, 1149 (Fla. 4th DCA 2012). In *Kline v. University of Florida*, 200 So. 3d 271 (Fla. 1st DCA 2016), the trial court ordered this same University to show cause on a records petition, the University asked for in camera inspection and filed sealed explanatory affidavits, and the court denied the petition after reviewing them. The First District reversed. "Absent waiver, an order issued without the statutorily-required hearing is premature." *Id.* at 272. A sworn affidavit and an invitation to inspect are not substitutes for the hearing. Nor, Petitioner submits, can the hearing substitute for the determinations and the identification the statute requires first.

29. The Third District states the same rule: "resolution of such disputed issues as notice and compliance must be litigated in an evidentiary setting." *Human Rights Defense Center v. Armor Correctional Health Services, Inc.*, No. 3D20-1320, 2021 WL 5614962 (Fla. 3d DCA Dec. 1, 2021).

30. Respondents nonetheless ask this Court to "examine the attached documents in light of the record before the Court to determine the crucial threshold issue." Prot. Order Mot. ¶ 25. That is the procedure *Kline* held premature.

31. **Respondents' own lead authority commands the determination this motion requests.** Respondents' motion rests on *Morris v. City of Miami*, 402 So. 3d 424, 426 (Fla. 3d DCA 2024). *Morris* reversed a final judgment "because the trial court has yet to adjudicate the issue of whether the City has complied with its obligations under the Public Records Act," and remanded "for the trial court to undertake whatever proceedings it deems necessary to adjudicate the issue of whether the City has complied."

32. The sentence from *Morris* Respondents quote is the first half of a pair. The second half reads: "If the City has not complied, then the trial court must exercise its discretion in determining whether the requested or other discovery is warranted." *Morris* requires the compliance adjudication. This motion is the vehicle: it asks the Court to adjudicate what the show-cause record permits, order identification of all located documents at a minimum, and set the statutory hearing if Respondents raise legitimate issues of material fact.

33. **What \*Kline\* permits, and on whose waiver.** *Kline* cuts at Petitioner too. If no order may issue before the hearing, Section IV could not be decided before it either. The answer is in the holding. The rule is qualified "[a]bsent waiver," and a waiver is a party's own. A party may give up the hearing as to itself; it cannot give up the other party's. Respondents invited adjudication on the papers, Prot. Order Mot. ¶ 25, and filed 479 pages on a public docket in support. To the extent the Court reaches the Section IV questions on that record, it does so at Respondents' invitation and on Respondents' waiver, which is also what protects the resulting order from the defect that produced the reversal in *Kline*. What Respondents have given up is the statutory hearing as to themselves. Petitioner waives nothing, and asserts no waiver of any exemption by anyone. If the Court reads *Kline* to bar any merits determination before the hearing, Petitioner asks in the alternative that the Section IV questions be taken up first at the September 2 hearing, on the existing record.

### **III. The University's Own Processing File**

34. The rest comes from the University's own internal file. Petitioner's second records request, No. W018964-060526, asked how the first one was processed. On July 17, 2026, the University produced that file: the emails its own staff exchanged while deciding what Petitioner would receive. Petitioner filed the complete production with this Court on August 28, 2026

(Filing 255904665, 741 pages) (Ex. K), and the key pages are compiled and pre-marked as Petitioner's Exhibit P, filed with this motion. Respondents have never contended their own emails are inaccurate.

35. **March 26, 2026: the request.** Petitioner's request sought records in three categories: his own name and contact information (Category A), six enumerated case numbers (Category B), and a targeted keyword list including "surveillance video" (Category C). It expressly covered records on personal devices and private accounts. Ex. A, App. 3-5.

36. **March 26, 2026: the request goes to counsel.** On the day the request was received, the records custodian forwarded it to two attorneys in the Office of the General Counsel, Amy Quillen and James W. Kirkconnell, copying Barbara Wood, under the subject "Public Records Request: W018463-032626," and asked: "Can we discuss this one at our meeting on Monday?" Emails\_1 p. 1 (Ex. P at 12). Counsel of record for Respondents in this action was on this request from the day it arrived.

37. **March 30, 2026: the first batch.** Four days after the request, the records custodian asked UFIT to run it. At 12:48 p.m. that same day, UFIT reported to him: "This search concluded with 103 message(s), which resulted in 330 page(s)." Emails\_1 p. 23 (Ex. P at 3); *see also* Ex. I, Tab 5. The batch was recorded on the University drive by file name, for review by the General Counsel's office. Nothing in the show-cause record identifies which of those 330 pages were produced and which were withheld.

38. **March 31 and April 2, 2026: the University's own system prompts the custodian.** The portal action log records a three-day staff reminder sent to the records custodian on March 31, 2026, and a five-day reminder on April 2, 2026. Granicus portal action log p. 9 (Ex. P at 16). The delay that followed was not the system's.

39. **April 22 and 23, 2026: "the legal review."** On April 22, 2026, Petitioner wrote to ask where his request stood. Ex. Q, App. 6-9. On April 23, 2026 at 12:25 p.m., Associate General Counsel Amy Quillen instructed the records custodian, copying Ms. Wood: "You can let him know that his request is undergoing the legal review." Emails\_1 p. 68 (Ex. P at 13). Fourteen minutes later, at 12:39 p.m., the University's records portal wrote to Petitioner: "Your request is undergoing the legal review." Emails\_1 p. 72 (Ex. P at 14); Ex. R, App. 10-11. The two documents can be read side by side. What Petitioner received was counsel's sentence, verbatim, relayed through the custodian as though it were a status.

40. The sequence matters because nothing about it was Petitioner's doing or the system's. The University's own portal had already prompted the custodian twice, with a three-day staff reminder on March 31, 2026 and a five-day reminder on April 2, 2026. Granicus portal action log p. 9 (Ex. P at 16). Twenty days after the second reminder Petitioner asked, once, where his request stood. Ex. Q, App. 6-9. What came back was not a status. It was a legal conclusion drafted in the Office of the General Counsel, and what it announced was a review Chapter 119 does not authorize as a reason to withhold.

41. Chapter 119 does not condition production on legal review, and it permits delay only for "the limited reasonable time allowed the custodian to retrieve the record and delete those portions of the record the custodian asserts are exempt." *Tribune Co. v. Cannella*, 458 So. 2d 1075, 1079 (Fla. 1984). What this review produced, weeks later, was 53 pages of Petitioner's own correspondence and a written statement that no exemption had been applied to anything.

42. **May 4, 2026, morning: the stall.** At 9:10 a.m., Professor Bambauer forwarded to the affiant an email from Petitioner dated March 25, 2026 that the search had not captured, and one minute later the affiant forwarded it to Ms. Quillen. Emails\_1 p. 116 (Ex. P at 17). At 9:29

a.m., the affiant asked UFIT in writing: "can you let us know why this email was not included in the search that was done for W018463-032626?" Emails\_1 p. 120 (Ex. P at 7). At 10:40 a.m., UFIT answered: the search tool had "stalled before completing the search of Professor Bambauer's mailbox," this was "likely an indexing error," and the tool "also identified 17 other messages that matched the criteria and should have been included previously." *Id.* p. 119 (Ex. P at 6).

43. **May 4, 2026, midday to afternoon: the declaration of completion.** At 11:11 a.m., 109 rerun pages were routed to the General Counsel's office "for approval to be released." *Id.*; *see also* Ex. I, Tab 12. At 3:22 p.m. the same day, the University wrote to Petitioner: "This completes the public records request." Ex. B, App. 15; *see also* Ex. I, Tab 13. The 53 pages delivered that day were Petitioner's own correspondence with University faculty.

44. **May 6, 2026: the Director's report.** Dr. David Cuillier, Director of the Brechner Freedom of Information Project, emailed Associate General Counsel Amy Quillen, Professor Jane Bambauer, and the records custodian: "I don't have any regarding those case numbers (or any case numbers). I don't know what any of those terms are (or any of the individuals). However, when I do a search for 'surveillance video' it comes up with a few dozen emails from the past several years, unrelated to Mr. Hanson. If you want IT to pull those, feel free to do so." Emails\_1 p. 190 (Ex. P at 8) (May 6, 2026). Petitioner quotes the passage in full because its first half matters as much as its second. The University's own search tool had already reported hits on those case numbers in the mailboxes it searched: two apiece for 2025-CA-002469 and 25-CA-10255, and twenty-seven for "13th Circuit." Emails\_1 p. 222 (Ex. P at 9). What the Director recalled and what the University's tool found were not the same, and the University processed the request on the recollection. Ms. Quillen had written to the same recipients earlier that

afternoon that although the requester was "not precisely clear, it could be that he is seeking any public record referencing one or more of these terms whether or not related to him." *Id.* (same page). Relatedness to Petitioner was not the criterion the request used. The terms were. Ex. A, App. 3-5; emails\_1 p. 1. The Director of the University's own freedom-of-information project told the Office of the General Counsel and the records custodian, in writing, that a search of one of Petitioner's Category C terms returned dozens of hits, and no one pulled them.

45. **May 7, 2026, 9:16 a.m.: counsel directs the extraction.** Ms. Quillen wrote to UFIT-eDiscovery and to the records custodian, copying Ms. Wood: "can you pull out the results with the search terms 13th Circuit, 2025-CA-002469, 25-CA-10255, Judge Kelly Ayers, Judge Matthew Felix, and surveillance video? If yes, please provide those results as a separate pdf." Emails\_2 p. 252 (Ex. P at 10). Every one of those six terms is a term of Petitioner's request. Two are Category B case numbers ("2025-CA-002469" and "25-CA-10255"); four are Category C keywords ("13th Circuit," "Judge Kelly Ayers," "Judge Matthew Felix," and "surveillance video"). The request as the University itself circulated it appears at Emails\_1 p. 1 (Ex. P at 12).

46. **May 7, 2026, 10:10 a.m.: UFIT delivers.** Fifty-four minutes later, UFIT replied to Ms. Quillen and to the records custodian, copying Ms. Wood: "Certainly – I have included any results containing those search terms in the attached PDF." The attachment was named ISS-444193-W018463-032626-16-88-opt-SpecificKeywords.pdf. Emails\_2 p. 252 (Ex. P at 10). Ms. Wood's own email records the size of what arrived: she was "in receipt of additional potentially responsive records (88 PAGES) from UFIT (05/07/26)." Emails\_2 p. 275 (Ex. P at 11). That file has never been produced to Petitioner or identified to this Court.

47. **The five batches against the sworn figure.** The batches may overlap: the May 4 delivery is described as a rerun and the May 7 file as an extraction from earlier results, and only

the University, which holds them, can say by how much. What overlap cannot change is this: **the April 24 batch alone, at 621 pages, is larger than the entire gathered set the University has described to this Court.** The affidavit swears UFIT "gathered over 470 pages." Hines Aff. ¶ 6. Paragraph 24 of the July 30 motion states the gathered set as pages 1 through 53, 54 through 302, and 303 through 479. A batch the University's own file records as larger than everything it has described to this Court is either inside the sworn figure or outside it. Respondents have never said which. That silence is the first of the matters Sections IV and VII address.

48. Respondents have never sworn, anywhere in this case, that they identified every document their searches located. The affidavit does not say it. The Response does not say it. The July 30 motion does not say it. The processing file shows the opposite. Material surfaced on May 4 only because Professor Bambauer noticed an email of Petitioner's that the search had missed, and UFIT then reported seventeen further messages that "should have been included previously." Emails\_1 pp. 119-120 (Ex. P at 6-7). A search that missed those messages is not shown by anything in this record to have found the rest.

49. The search terms make the point sharper. The six terms counsel directed be extracted on May 7 were a court, two case numbers, two judges named in Petitioner's litigation, and the phrase "surveillance video." Emails\_2 p. 252 (Ex. P at 10). Correspondence responsive to terms like those is correspondence about the University's official business. It is not, on its face, the material about unrelated persons that Respondents' waiver defense describes.

50. **What the affiant received.** The records custodian was a direct recipient of both May 7 emails: Ms. Quillen's 9:16 a.m. extraction instruction, and UFIT's 10:10 a.m. delivery of the resulting file. Emails\_2 p. 252 (Ex. P at 10). He had received Dr. Cuillier's May 6 report the day before, and UFIT's keyword chart for the original search, which reports message counts for



only nine of the twenty-one terms the search ran, the complete term list appearing in the University's own search strategy at Emails\_1 p. 280 (Ex. P at 15), and which shows hits on every one of the six terms counsel directed be extracted that morning: twenty-seven messages for "13th Circuit," and two apiece for 2025-CA-002469, 25-CA-10255, Judge Kelly Ayers, Judge Matthew Felix, and surveillance video. The chart is silent on the remaining terms, and nothing in the show-cause record states whether they were run. Emails\_1 p. 222 (Ex. P at 9). The complete twenty-one-term list appears in the University's own search strategy. Emails\_1 p. 280 (Ex. P at 15). The chart's count for "surveillance video" is two, in a search bounded to December 1, 2024 through March 26, 2026. The day before, the Director of the University's own freedom-of-information project had reported in writing that the same term returned "a few dozen emails from the past several years" in his account. Date range may explain part of that difference. Only Respondents' own hit lists can show how much of it, because no one pulled the Director's dozens to find out, although his mailbox was one of only two the University searched. Two months later he swore that the responsive public records were delivered on May 4 and described a collection process that mentions none of it. Hines Aff. ¶¶ 5-8. Beyond the aggregate "over 470 pages," the affidavit gives no accounting of any kind: no count of pages produced, none for records treated as public, none for records treated as non-records, and no line telling the Court where the 53 produced pages end and the withheld pages begin.

51. The contrast in what Respondents were willing to put before the public is the plainest fact in this record. The material they continue to withhold is correspondence of a public university about its official business, located in two University mailboxes. The material they did file, unredacted, on the open docket, includes a non-party's full date of birth, residential address,

and telephone number. Prot. Order Mot. Ex. D, orig. p. 160; *see* Section VIII below. They have identified not one page of the first, and they published the second.

52. The position Respondents' Response leaves standing is that a public university may withhold an unknown quantity of located records without stating how many pages exist, without identifying a single one, and without any means for the requester or the public to test the withholding. A university may hold legitimate confidentiality interests in some of its work. The records at issue here are the correspondence of a project the University operates under the name Brechner Freedom of Information Project, generated when a citizen asked it for help obtaining public records. Whatever latitude secrecy may claim elsewhere in a university, it claims least here.

#### **IV. Matters on Which the Return Did Not Carry the Burden**

53. **No exemption is on the show-cause record.** Respondents' custodian wrote, and the Response quotes: "No exempt information was withheld or redacted from the records responsive to your request, and consequently, no statutory exemptions were cited in UF's response." Response p. 4 (App. 76). The Response adds that "[a]ll of the records responsive to Petitioner's request were produced in their entirety." Response p. 9. The affidavit asserts no exemption for any page.

54. The duty attaches to the contention. Section 119.07(1)(e) requires a custodian who "contends" a record is exempt to "state the basis of the exemption ... including the statutory citation." Where an exemption is claimed, or where doubt exists whether a document must be disclosed, the proper procedure is to furnish the document to the trial judge for an in camera inspection. *Walton v. Dugger*, 634 So. 2d 1059, 1061-62 (Fla. 1993). Respondents contended nothing in the Response. On this record Respondents proved no exemption.

55. **Respondents do not satisfy the authority they themselves cite.** *Environmental Turf, Inc. v. University of Florida Board of Trustees*, 83 So. 3d 1012, 1013 (Fla. 1st DCA 2012), states that in camera inspection is "generally the only way for a trial court to determine whether or not a claim of exemption applies." There the University asserted three statutory exemptions with citations; the trial court "denied relief based on these three asserted exemptions without inspecting the records at issue," and the First District reversed for in camera inspection as to every exemption whose application could not be resolved without examining the records. *Id.* In camera inspection tests a claim of exemption. In its July 7 Response the University made none.

56. **The exemptions first asserted on July 30 are unitemized, and Respondents' own binding authority requires the itemization.** Footnote 4 to the Motion for Protective Order states that the category (2) records "have been redacted pursuant to 20 U.S.C. s. 1232g, as well as § 1006.52, Fla. Stat. (FERPA protected student educational information), and § 119.071(5)(b), Fla. Stat. (bank account information)." That is three statutes applied to a 249-page block. No record is identified. It is also the first exemption asserted in this case, twenty-three days after Respondents told the Court that all responsive records had been "produced in their entirety" with nothing withheld.

57. Respondents supplied the controlling construction themselves, from the district that binds this Court:

"Thus, section 119.07(1)(e) plainly requires only record-by-record—not redaction-by-redaction—identification of the exemptions authorizing the redactions in each record."

*Jones v. Miami Herald Media Co.*, 198 So. 3d 1143, 1146 (Fla. 1st DCA 2016) (Response p. 10). Respondents cited *Jones* for what the statute does not require. It also fixes what it does require, and Respondents have done it for no record. That is a question of law on Respondents' own

filings. *Dettelbach v. Department of Business & Professional Regulation*, 261 So. 3d 676, 683 (Fla. 1st DCA 2018), which the Response cites alongside *Jones*, states that "there is nothing in the statute that expressly requires the Department to identify each document that it asserts is exempt under the Public Records Act," and that imposing a document-by-document duty "similar to the generation of a privilege log" is "a matter properly addressed to the legislature." Response pp. 9-10. Petitioner asks for no privilege log. Both sentences address an agency that had identified and produced the records and redacted within them. Neither reaches section 119.07(1)(f), which requires the custodian, on request, to state in writing and with particularity the reasons for the exemption conclusion, and Petitioner made that request in the request itself. Emails\_1 p. 1 (Ex. P at 12). Neither addresses exemptions asserted in litigation against records the agency has never identified at all.

58. **Ex. H, orig. p. 302, discloses a search channel the affidavit does not.** Of the 479 pages Respondents filed on July 30, 2026, exactly one bears no category designation: Ex. H, orig. p. 302, at page 333 of the filed motion. It is a screenshot of a mobile text-messaging application, showing a search box containing "hanson" and a result count reading "1/1 result found." The message content is trivial; the channel is the point. The image establishes that a text-message search was run on a mobile device. The Hines affidavit discloses no such search: it says UFIT gathered the pages "using the terms identified in Petitioner's request," names no system other than email, and describes no messaging channel. Hines Aff. ¶¶ 5, 6.

59. Petitioner's March 26, 2026 request expressly sought "emails, text messages, Signal/WhatsApp messages, internal memoranda, notes, and draft research or survey data," and expressly covered "records stored on personal devices (phones, tablets, computers) or private email accounts" used for University business. Emails\_1 p. 1 (Ex. P at 12). The University's own

processing file shows its custodian understood messaging records to be within the request's scope. On March 30, 2026 at 11:49 a.m., the custodian asked Dr. Cuillier to confirm whether "there are no text messages and/or Signal/WhatsApp messages from what was being asked for." Emails\_1 p. 11 (Ex. P at 2). About an hour later, at 12:51 p.m., he wrote that he did not "believe we would need any text messages that don't specifically relate to what the person had asked for." Emails\_1 p. 26 (Ex. P at 4); *see also* Ex. I, Tab 7. By its own terms that statement excludes only unrelated messages; it leaves related messages within scope, as the custodian's own question that morning assumed. No text message has ever been produced.

60. The record does not establish whose device or account the image shows, and Respondents' own processing file makes that silence conspicuous. On May 5, 2026 at 8:53 a.m., Professor Bambauer wrote to the records custodian and to Dr. Cuillier, copying counsel: "All of my references to 'Hanson' in my text messages refer to my friend Robin Hanson. I just checked my text messages to Dave to make sure." Emails\_1 p. 190 (Ex. P at 8). The next afternoon Ms. Quillen circulated the complete list of Petitioner's case numbers and keywords to the same recipients, noting that she was "primarily asking about communications other than email, since UF IT conducted that search." *Id.* A University employee therefore searched her own text messages for Petitioner's surname, reported having done so to the custodian in writing, and characterized the result herself. That search appears nowhere in the affidavit, none of it was disclosed to Petitioner, and no text message has ever been produced. Respondents must disclose the channel, identify the account and device searched, and state who ran that search; production of the page is secondary to that disclosure.

61. The page also carries no Bates designation, though Prot. Order Mot. n.4 represents that the records include "Bates designations for each category," and Prot. Order Mot. ¶

24 assigns pages 54 through 302 to category (2). Petitioner has located no Bates designation on any page of Prot. Order Mot. Ex. D; the pages bear only colored category labels. As to page 302 the show-cause record states no exemption, no non-responsiveness determination, and no non-record determination. It states nothing.

## **V. The Court's Duty to Require Identification and to Inspect In Camera**

62. Where an agency asserts that gathered records are exempt, non-responsive, or not public records, and the requester establishes a factual dispute as to the completeness of the search or the propriety of the withholding, the determination belongs to the Court and not to the agency's legal department. In *Walton v. Dugger*, 634 So. 2d 1059, 1061-62 (Fla. 1993), the Florida Supreme Court held: "When, as in the instant case, certain statutory exemptions are claimed by the party against whom the public records request has been filed or when doubt exists as to whether a particular document must be disclosed, the proper procedure is to furnish the document to the trial judge for an in camera inspection. At that time, the trial judge can properly determine if the document is, in fact, subject to a public records disclosure." (Citation omitted.)

63. Respondents asserted exemptions for the first time in a footnote on July 30 and have never lodged the corresponding records. Section 119.07(1)(g) directs that where the court finds an asserted exemption inapplicable, "it shall order the public record or part thereof in question to be immediately produced for inspection or copying." The procedure for getting there is the one *Walton* prescribes for any claimed exemption or doubtful record, and it is the procedure Respondents' own authority calls "generally the only way for a trial court to determine whether or not a claim of exemption applies." Respondents also consented to the procedure in the Response itself: "These documents will be provided to the Court upon request for an in camera review." Resp. p. 3 n.5, a footnote attached to the affidavit's "over 470 pages." Petitioner

asks the Court to make that request, and to extend it to the batches the Response never mentioned. Because the Court's ability to inspect depends on the materials remaining as they are, and because none of them has yet been identified, Petitioner asks that Respondents preserve them unaltered, together with the search outputs, hit lists, and audit logs described in the University's own processing file. Preservation asks nothing of Respondents but that they leave in place what they already hold.

64. Identification must precede inspection. Section 119.07(1)(e) requires the basis of each exemption and its statutory citation. Section 119.07(1)(f) requires, on request, a written statement with particularity of the reasons for the exemption conclusion. Petitioner made that request in the request itself: "If you claim that any record (or portion thereof) is exempt ... you must state the basis for the exemption in writing, citing the specific statutory exemption. For any withheld record, please provide a log identifying the date, author, recipient, and general subject matter." Emails\_1 p. 1 (Ex. P at 12). The Public Records Act is construed liberally in favor of openness, and exemptions narrowly, limited in their designated purpose. Art. I, § 24, Fla. Const.; *Bd. of Trustees, Jacksonville Police & Fire Pension Fund v. Lee*, 189 So. 3d 120, 125 (Fla. 2016). Where an agency's response fails to identify with specificity the reasons and statutory basis for withholding, the response is inadequate, and the court orders an amended response identifying them with specificity before resolving entitlement. *Weeks v. Golden*, 764 So. 2d 633, 634-35 (Fla. 1st DCA 2000).

## **VI. A Florida Circuit Court Ordered This Sequence on August 27, 2026**

65. A trial-court order binds no one. The following is offered because it shows a Florida circuit court applying Chapter 119 to the identical procedural question, in Petitioner's own parallel public records mandamus, six days before the hearing set here.

66. On August 27, 2026, in *Hanson v. Thirteenth Judicial Circuit*, No. 25-CA-010255 (Fla. 13th Cir.) (Ex. N), the court directed that within fourteen days "Defendants who claim that any responsive record other than the Video is exempt or confidential must file a written statement that, as to each such record: (1) identifies the record by date, author, recipient(s), and general subject matter; and (2) states the specific constitutional, statutory, or rule-based basis for exemption or confidentiality claimed." Order at 4, § II(d). It further directed: "Contemporaneously with the statement required in Paragraph II(d) above, Defendants must tender to the Court, for in-camera inspection, any record as to which an exemption is claimed." *Id.* § II(e).

67. On sequence, the same order granted clarification "to the following extent: the Court will determine the legal sufficiency of Defendants' return before any final evidentiary hearing is held," and clarified "that Defendants must make the particularized exemption showing and tender the records for in-camera inspection before Plaintiff is required to identify any disputed facts or before a final evidentiary hearing is set." Order at 5, § III(b)-(c). The court also tolled the parties' obligation to identify disputed facts "until Defendants have complied with the directive to identify any claimed exemptions to responsive records." *Id.* § III(a).

68. The parallel is exact. There, as here, an agency asserted exemptions without identifying the records they covered, and the requester was being pressed toward a merits proceeding before the withheld material had ever been examined. The court's answer was to require a record-by-record written statement, require contemporaneous in camera tender, and decide the sufficiency of the return first. Petitioner asks this Court for the same three things, in the same order.



69. Petitioner discloses the order's adverse holdings so the Court has them from him first. The court denied a peremptory writ on the existing record because disputed factual issues remained, citing *Radford v. Brock*, 914 So. 2d 1066, 1068 (Fla. 2d DCA 2005), and *Moore v. Ake*, 693 So. 2d 697, 698 (Fla. 2d DCA 1997). It held that a contention that the agency "waived" exemptions by failing to provide a privilege log is "not supported by Florida law." And it denied sanctions without prejudice because the record at that stage did not establish bad faith. This motion is built to fit those holdings: it seeks conformity only on grounds the Court finds uncarried as a matter of law on Respondents' own filings, and identification, inspection, and an order of proceedings as to everything else.

## **VII. Matters Respondents Have Not Met With Evidence**

70. Respondents have moved to close this records request out without identifying what they located, and Petitioner does not concede that they have contested any of the matters below. Respondents carry the burden on every ground for withholding, and the only evidence they have offered is a two-page affidavit whose author did not conduct the searches it describes. Hines Aff. ¶¶ 5-6. That affidavit identifies no located record, states no count of what was produced or withheld, draws no line the Court can apply between public records and what Respondents call non-records, and states no ground for withholding any page. It swears to nothing that would justify keeping a single located record from public view.

71. Petitioner identifies the matters below because, if the Court finds any of them contested, the duty to resolve it on evidence is not optional: "If the petition and answer to the alternative writ raise disputed factual issues, the trial court must resolve these issues upon evidence submitted by the parties." *Radford v. Brock*, 914 So. 2d 1066, 1068 (Fla. 2d DCA 2005), quoted and applied in *Clay County Education Ass'n v. Clay County School Board*, 144 So.

3d 708, 709-10 (Fla. 1st DCA 2014) (reversing a dismissal entered on the pleadings and remanding "for an immediate hearing under section 119.11(1)"). Identifying the issues is the predicate for resolving them. Where Respondents have offered no evidence at all on a matter below, it is not resolved by trial. It is resolved by the burden they did not carry.

72. **The classification of 98 pages.** Prot. Order Mot. ¶ 24 assigns Prot. Order Mot. Ex. D pages 303 through 479 to category (3), which Prot. Order Mot. ¶ 11 defines as "documents which were not public records." The same paragraphs assign pages 1 through 53 to category (1), "responsive public records," and pages 54 through 302 to category (2), "non-responsive public records." That range is 177 pages. The per-page stamps on Prot. Order Mot. Ex. D itself read "Category 2" through page 400, and "Category 3" begins only at page 401. That range is 79 pages. Ninety-eight pages, Prot. Order Mot. Ex. D 303 through 400, therefore carry a non-record assignment in the motion and a public-record stamp on the page. Those statuses are mutually exclusive under Chapter 119. Petitioner states both figures and asks that the conflict be set for hearing, not resolved on the papers.

73. **The scope of the search, what the sworn figure counts, and the limits of the affidavit itself.** The affidavit states that UFIT gathered the pages "using the terms identified in Petitioner's request." Hines Aff. ¶ 6. It names no search term, no mailbox, no system, and no date range. The processing file supplies all four, and shows more searches than the affidavit describes: on May 7, 2026, UFIT ran the same twenty-one terms and the same December 1, 2024 to March 26, 2026 date range against a third Brechner Center mailbox, reporting "This search concluded with no results." Emails\_1 p. 280 (Ex. P at 15). The affidavit does not mention that search, and the date range the University's searches used ends March 26, 2026, the day the request arrived. Respondents' counts have varied, and Petitioner reports the variance rather than

choosing among the figures: the affidavit swears "over 470 pages," counsel confirmed 478 pages by telephone on July 15, 2026, a figure Petitioner memorialized to counsel in writing the next day and counsel has never corrected ("During our call, you also confirmed that UFIT located 478 pages in its search.") (Ex. M), and Prot. Order Mot. Ex. D presents 479. Respondents call the affidavit "competent substantial evidence." Prot. Order Mot. ¶ 16. Its author did not conduct the searches he describes; the affidavit says UFIT ran them. Hines Aff. ¶¶ 5-6.

74. **The status of the material located on April 24, May 4, and May 7, 2026.** The show-cause record does not state whether the 621-page April 24 batch, the 109-page May 4 rerun, the 17 messages UFIT reported it had previously missed, or the 88-page May 7 extraction are within the sworn "over 470 pages," whether any of them has been produced, or any ground for withholding them. These are allegations drawn from the University's own documents tending to impugn the account the affidavit gives, which is the showing that entitles a requester to test it. *Mendyk v. State*, 707 So. 2d 320, 322 (Fla. 1997) (requester "should not have been precluded from either exploring by deposition or at an evidentiary hearing the existence or location of the missing records").

75. **The scope of the question Respondents' waiver defense rests on.** Respondents' motion quotes the University's May 8, 2026 question: whether Petitioner sought records that "relate to individuals who are not you, but have the same last name," and Petitioner's answer, "The answer is no." Prot. Order Mot. ¶¶ 12-13. The exchange itself is of record, and Respondents cite the same pages. Ex. D, App. 74 (the University's question) and App. 75 (Petitioner's answer); Prot. Order Mot. ¶¶ 12-13. By its own terms that question reached only records about individuals sharing the surname. The six terms Ms. Quillen directed be extracted on May 7 are the 13th Circuit, two of Petitioner's own case numbers, the names of two judges from his cases,

and his keyword "surveillance video." No reading of that exchange converts those into declined records. Whether each withheld category (2) record falls within the scope of the question the University actually asked, and whether the University treated the answer to that narrow question as a waiver reaching material it does not cover, cannot be resolved on the papers.

### **VIII. No Protective Order Reaches the Relief This Motion Seeks**

76. At the August 24, 2026 conference the Court announced on the record its intent to enter an order granting Respondents' Motion for Protective Order. No written order has issued. Petitioner preserves his objection, and reserves the right to seek reconsideration of the order when it is entered. He does not reargue the motion here. Whatever the order provides when entered, it governs discovery between the parties. It does not relieve Respondents of the identification duty sections 119.07(1)(e) and (1)(f) impose, and it does not displace the Court's own in camera inspection function. *Walton v. Dugger*, 634 So. 2d 1059, 1061-62 (Fla. 1993). The core relief this motion seeks is not discovery. It is the identification Respondents owe by statute and the inspection the Court performs.

77. The reasons the motion should not have been granted bear on the relief sought here, and are stated to preserve them. Respondents argue that discovery is not practical in an accelerated mandamus action. That argument inverts the statute. Section 119.11(1) commands an immediate hearing and docket priority because delay in access is itself the injury Chapter 119 guards against. "The only delay permitted by the Act is the limited reasonable time allowed the custodian to retrieve the record and delete those portions of the record the custodian asserts are exempt." *Tribune Co. v. Cannella*, 458 So. 2d 1075, 1079 (Fla. 1984).

78. Unjustifiable delay to the point of forcing a requester to file an enforcement action is by itself tantamount to an unlawful refusal. *Promenade D'Iberville, LLC v. Sundy*, 145

So. 3d 980, 984 (Fla. 1st DCA 2014) (where the agency answered the records request by seeking a protective order in other litigation rather than producing, and produced only after the requester filed an enforcement action); *Weeks v. Golden*, 764 So. 2d 633, 635 (Fla. 1st DCA 2000). The acceleration features of Chapter 119 exist for the requester's benefit, and Respondents invoke them here as grounds for denying Petitioner the means to prove his case. A protective order used this way converts a statute written to speed disclosure into an instrument for preventing it.

79. Respondents cannot moot discovery by pointing to Prot. Order Mot. Ex. D. The University's own eDiscovery correspondence proves it ran six of Petitioner's Category B and C terms and extracted a dedicated file of the hits (Ex. P at 10-11). Prot. Order Mot. Ex. D is not that file.

80. Prot. Order Mot. Ex. D's category (3) block, which Prot. Order Mot. ¶ 11 defines as "documents which were not public records," consists, but for a single newsletter page at its end, of one mass email reproduced twice: the identical message begins at Prot. Order Mot. Ex. D, orig. p. 401 and begins again, unchanged, thirty-nine pages later at page 440; the category runs seventy-nine pages. Elsewhere Prot. Order Mot. Ex. D contains academic and subscription newsletters and correspondence concerning third parties unrelated to this case, including an individual who shares Petitioner's surname and appears in a conference attendee list. A file of hits on "surveillance video," "13th Circuit," and two named judges cannot consist of a duplicated mass email and another man's conference materials. Prot. Order Mot. Ex. D was filed in place of the responsive records, not as them.

81. The manner of that filing independently warrants the Court's attention. Florida Rule of General Practice and Judicial Administration 2.425(a) limits what a filing may contain. As to a birth date, a filing is limited to "the year of birth of a person's birth date." R. 2.425(a)(2).

As to a telephone number, it is limited to the last four digits. R. 2.425(a)(4)(E). At Prot. Order Mot. Ex. D, orig. p. 160, Respondents placed on the public docket, unredacted, a non-party's full name, his complete date of birth, and his complete telephone number, alongside his residential address and unit number. The rule provides its own remedy: "The court may order remedies, sanctions, or both for a violation of subdivision (a) on motion by a party or interested person or sua sponte by the court." R. 2.425(c). Petitioner does not reproduce that information here and seeks no sanctions under rule 2.425(c). He asks only that the Court consider whether that page, and Prot. Order Mot. Ex. D, orig. p. 288, which carries a second non-party's residential address, should be sealed or stricken.

82. Both pages are stamped "Category 2," the category footnote 4 represents was "redacted pursuant to" FERPA and the financial-account exemption. Prot. Order Mot. Ex. D, orig. pp. 160, 288; Prot. Order Mot. n.4. Respondents filed 479 pages of gathered material, including these, to document pages they say Petitioner was never entitled to see, while continuing to withhold the pages that hit on his actual request. The choice of what to place on the public record and what to withhold from it is itself evidence of how this request was processed.

83. Respondents' most recent position confirms the pattern. On August 26, 2026, responding to Petitioner's written demand for compliance on his pending records requests, counsel replied: "To the extent that your correspondence seeks public records, please clarify which records you seek using the University's public records portal." Ex. L, tab I. Directing a mandamus respondent's existing compliance obligations into an intake queue, seven days before a final hearing, is not clarification.

## **IX. Reservations**

84. Every disputed fact identified in Section VII is reserved for the evidentiary hearing; the matters in Section IV are questions of law resolvable on Respondents' own filings. Petitioner expressly reserves the immediate evidentiary hearing required by section 119.11(1), the written discovery served July 13, 2026 and the noticed depositions, and his entitlement to fees and costs under section 119.12, Florida Statutes. Section 119.11(1) requires a hearing; it does not authorize a paper adjudication in which the agency files its own evidence and forbids examination of it.

85. **The August 3, 2026 non-appearances are reserved, not waived.** Petitioner does not ask the Court to resolve them at the September 2, 2026 hearing. He reserves his entitlement, as to Mr. Hines, to the reasonable expenses caused by the failure to appear, including the court reporter's fees, under Florida Rule of Civil Procedure 1.380(e)(2), which directs that the court "must require the party failing to act to pay the reasonable expenses caused by the failure, which may include attorneys' fees, unless the court finds that the failure was substantially justified or that other circumstances make an award of expenses unjust." Fla. R. Civ. P. 1.380(e)(2) (former rule 1.380(d), renumbered effective January 1, 2025). Petitioner seeks no order striking any pleading and no adjudication of contempt. The filing of a motion for protective order, without an order, does not stay a noticed deposition. *Stables v. Rivers*, 559 So. 2d 440 (Fla. 1st DCA 1990) (rejecting the contention "that the filing of the motion for protective order acted as an automatic stay of the scheduled depositions") (construing former rule 1.380(d), renumbered as 1.380(e) effective January 1, 2025). Where a deponent "filed a motion for protective order instead" of appearing, the same court held that "[e]ven without an adjudication of contempt, a trial court may order a properly noticed party who fails to appear for deposition to make other parties whole

for financial losses that the failure to appear causes." *H.K. Development, LLC v. Greer*, 32 So. 3d 178 (Fla. 1st DCA 2010). Petitioner will present the reporter's invoices at a time the Court sets.

#### **X. Present Posture and Designation of the September 2 Hearing**

86. This motion supplements, and does not duplicate, the cross-motion at paragraph 96(a) through (k) of Petitioner's Combined Response in Opposition, filed July 31, 2026 (Filing 253756192). No written order has adjudicated that cross-motion, and the transcript of the August 24 conference has not been delivered.

87. On August 24, 2026, the case management conference was held. Respondents' two motions and Petitioner's cross-motion had each been noticed for that conference. Notice of Hearing, Filing 254902680 (Aug. 14, 2026); Petitioner's Notice of Hearing, Filing 255482392 (Aug. 24, 2026). The hearing composite filed that day is Ex. I (Filing 255482308). The Court announced rulings orally at the conference. Petitioner ordered the transcript the same day; it has not yet been delivered. As of the filing of this motion, no written order has been entered adjudicating Petitioner's cross-motion.

88. On August 25, 2026, the Court entered the Order Setting Evidentiary Hearing Via Zoom (Filing 255637757), scheduling an "Evidentiary Hearing on Verified Petition for Writ of Mandamus" for Wednesday, September 2, 2026, at 9:00 a.m., with one and one-half hours reserved. The order sets exhibit and witness-list requirements for August 31, 2026. It does not reference the cross-motion, and it does not state which issues the hearing will try.

89. Ninety minutes cannot both determine the sufficiency of the return and try the issues Section VII identifies on live testimony. Nor can a final adjudication of compliance precede the identification the statute requires: no exemption has been itemized for any record, § 119.07(1)(e), (1)(f); the in camera procedure applies to any record for which an exemption is



claimed or as to which doubt exists, *Walton v. Dugger*, 634 So. 2d 1059, 1061-62 (Fla. 1993); and the show-cause record leaves unaccounted the materials described in Sections III and VII.

90. A final hearing held before Respondents identify what they located and the ground for each withholding would adjudicate compliance on an untested affidavit, and would try the sufficiency of the University's production while the University withholds the very materials whose withholding is the question. The subject of the trial cannot be both at issue and unidentified. *Morris* requires the compliance adjudication before judgment, *Kline* holds an adjudication without the statutory hearing premature, and the August 27 order in Petitioner's parallel case required identification and in camera tender before any final evidentiary hearing.

91. Petitioner moved for an early hearing and stands on it. The cross-motion asked for an expedited schedule in sequence: completion of the served discovery, then the section 119.11(1) evidentiary hearing on or after August 28. Combined Response ¶ 96. The September 2 setting arrives with the early hearing but without the antecedent identification that schedule was built around. An early hearing on an identified record is what Petitioner has sought throughout.

92. The orderly course fits inside the existing setting, and a staged adjudication is ordinary Chapter 119 practice. *See Hernando County v. Hernando County Fair Ass'n, Inc.*, No. 5D2023-3001 (Fla. 5th DCA June 14, 2024) (order resolving some Chapter 119 issues while reserving others for an evidentiary hearing treated as nonfinal). Petitioner asks the Court to designate the September 2, 2026 hearing as a preliminary evidentiary hearing addressing, in order: (a) the Section IV determinations on the show-cause record and production on every ground the return did not carry; (b) Petitioner's pending cross-motion; (c) in the alternative, the identification and in camera framework under sections 119.07(1)(e) and (1)(f) and *Walton v. Dugger*; and (d) the statement of the issues of material fact that remain for final hearing, with the

final evidentiary hearing set for the earliest date that framework permits. The September 2 date stands. Only its scope is stated.

93. In the alternative, if the Court intends September 2 as the final hearing on all issues, Petitioner asks that the Court direct Respondents to serve, by a date certain before the hearing, the written identification described in WHEREFORE clause (c) below; direct Respondents to deliver the withheld materials for in camera inspection at or before the hearing; and enlarge the reserved time sufficiently to try the issues identified in Section VII on live testimony.

94. On August 26, 2026, Petitioner asked Respondents' counsel in writing whether Respondents would agree to a brief continuance; counsel declined the same day, and again on August 28. Ex. L, tab I; Ex. O. This motion proceeds on the September 2 date and keeps every deadline the August 25 order sets. Petitioner served and e-filed his exhibit list, witness list, and exhibits on August 31, 2026, and delivered the paper exhibit volume to the courthouse the same day.

**WHEREFORE**, Petitioner respectfully requests that the Court enter an order:

a. **Determining**, on the existing show-cause record or at the outset of the September 2, 2026 hearing, which of the grounds Respondents have asserted for withholding located records have carried the agency's burden of justifying nondisclosure, and which have not;

b. **Conforming** the Order to Show Cause to the relief the Court finds proper, awarding a peremptory writ so conformed, and directing production as to each ground the Court finds uncarried as a matter of law, with the compliance period fixed by the Court and with no retained jurisdiction;

c. **Alternatively**, to the extent the Court does not order production under paragraph (b), **directing** Respondents, as to any record located in response to Request No. W018463-032626 that Respondents claim is exempt, confidential, or not a public record, to file a written statement that, as to each such record, (1) identifies the record by date, author, recipient or recipients, and general subject matter, and (2) states the specific constitutional, statutory, or rule-based basis claimed, and to tender contemporaneously to the Court, for in camera inspection, every record as to which any such claim is made; and, as to each of the following, either to make that statement and tender or to state in the same filing where within the produced or filed sets it appears in full: the file named ISS-444193-W018463-032626-16-88-opt-SpecificKeywords.pdf, the April 24, 2026 batch, the May 4, 2026 rerun and the seventeen messages UFIT reported it had previously missed, the March 30, 2026 batch and the ten additional pages recorded with it, and Ex. H, orig. p. 302;

d. **Directing** Respondents to disclose in writing the messaging channel reflected at Ex. H, orig. p. 302, and to identify the account and device searched and the person who ran that search;

e. **Ordering** Respondents to preserve, unaltered, every record identified in paragraphs (c) and (d), the associated search outputs, hit lists, and audit logs, and the complete W018964-060526 production set, pending further order of the Court;

f. **Providing** that the relief ordered under paragraphs (c) through (e) rests on sections 119.07(1)(e) and (1)(f) and on the Court's in camera function, independent of any discovery ruling;

g. **Ruling** on Petitioner's cross-motion filed July 31, 2026 (Filing 253756192, ¶ 96), with its schedule conformed to the present calendar, and determining which of its requests remain live;

h. **Designating** the September 2, 2026 hearing as a preliminary evidentiary hearing addressing the Section IV determinations, the cross-motion, the identification and in camera framework, and the statement of the issues of material fact that remain, and setting the final evidentiary hearing on the issues so stated for the earliest date that framework permits;

i. **Alternatively**, if September 2 is to be the final hearing on all issues: directing that the identification in paragraph (c) be served by a date certain before the hearing, directing delivery of the withheld materials for in camera inspection at or before the hearing, and enlarging the reserved time;

j. **Confirming** that all matters identified in Section VII are reserved for the evidentiary hearing, and that Petitioner retains the hearing required by section 119.11(1), such discovery as survives the Court's ruling on the protective-order motion, and his entitlement to fees and costs under section 119.12, Florida Statutes;

k. **Reserving** jurisdiction to determine Petitioner's entitlement to attorney's fees and costs under section 119.12, Florida Statutes; and

l. **Reserving** Petitioner's entitlement, as to Mr. Hines, to the reasonable expenses caused by the August 3, 2026 failure to appear at a duly noticed deposition, including court reporter's fees, under Florida Rule of Civil Procedure 1.380(e)(2), to be determined on later application and proof; and

m. **Granting** such other relief as the Court deems proper.

/s/ Christopher A. Hanson Christopher A. Hanson, Esq. Florida Bar No. 44094 3934 E. Eden  
Roc Circle Tampa, Florida 33634 cahanson77@yahoo.com 727-409-5738 *Self-represented*  
*Petitioner*

## **EXHIBITS**

Petitioner's exhibits for the September 2, 2026 hearing are pre-marked by letter, A through R, and are listed on Petitioner's Exhibit List served and filed August 31, 2026. This motion uses those letters throughout, so that a single set of markings serves the motion, the exhibit list, and the hearing.

Filed with this motion: **Exhibit P**, the compiled key pages of the University's W018964-060526 processing-file production, 17 pages with index; and **Exhibit N**, the order entered August 27, 2026 in *Hanson v. Thirteenth Judicial Circuit*, No. 25-CA-010255 (Fla. 13th Cir.), 5 pages.

**Exhibit L**, which contains the August 3, 2026 certificates of non-appearance at its tabs A and B, is filed separately the same day as Petitioner's Notice of Filing.

Respondents' voluminous filings are incorporated by reference rather than reproduced.

Respondents' Motion for Protective Order and its Composite Exhibits A through D (Ex. G and Ex. H) are of record within Filing 253616687, and the University's 741-page production (Ex. K) is of record at Filing 255904665. Petitioner relies on each in full. A single page of Exhibit D is reproduced, at Ex. H: original page 302, the mobile messaging screenshot, which is an image and which paragraphs 58 through 60 ask the Court to examine. Petitioner does not reproduce original pages 160 and 288, which carry the non-party personal data described in Section VIII. Pages of Exhibit D are cited by their original page numbers in that exhibit.

### **CERTIFICATE OF GOOD FAITH CONFERRAL (AO 3.09)**

I HEREBY CERTIFY that on August 28, 2026, I conferred with James W. Kirkconnell, Esq., counsel for Respondents, regarding the relief requested in this motion. Counsel responded in writing the same day and stated Respondents' position: Respondents do not agree to a continuance of the September 2, 2026 hearing, do not "agree to hear any matters at the Hearing except as specifically noticed by the Court," and do not "agree to any effort to rehear or reconsider the Court's rulings from the August 24, 2026." Respondents therefore oppose the relief requested. E-mail of James W. Kirkconnell, Esq., August 28, 2026 (Ex. O).

### **CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that on August 31, 2026, the foregoing, with Exhibits N and P, was filed with the Florida Courts E-Filing Portal, which will serve a Notice of Electronic Filing on James W. Kirkconnell, Esq., jameswk@ufl.edu, counsel for Respondents, and on Kimberly LoGiurato, klogiurato@ufl.edu, a designated e-service address for Respondents.

/s/ Christopher A. Hanson  
Christopher A. Hanson  
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Christophhanson77@yahoo.com

